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Attorneys for Plaintiff Denuvo GmbH

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

DENUVO GMBH, Plaintiff, v. VOICES38, an unknown individual or entity, and DOES 1-10, Defendants.	Case No. 4:26-cv-10423-HSG **PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE (DKT. NO. 24) RE *EX PARTE* MOTION FOR EXPEDITED DISCOVERY (DKT. NO. 15)** Judge: Haywood S. Gilliam, Jr.

Plaintiff Denuvo GmbH ("Denuvo") responds to the Court's Order Directing Plaintiff to E-File Proposed Order and Order to Show Cause (the "Order"). Dkt. No. 24. Denuvo concurrently herewith e-files the proposed order. Denuvo also attaches hereto revised subpoenas to Discord, Inc. ("Discord"), Reddit, Inc. ("Reddit"), and Valve Corporation ("Valve") as Exhibits A, B, and C. Denuvo accepts the Court's invitation to submit revised subpoenas that are narrowly tailored to identify Defendant. Denuvo respectfully submits that the revised subpoenas align with the narrowly tailored subpoena in *Alo, LLC v. Fang*, No. 25-cv-11126-PHK, 2026 WL 1725893, 2026

U.S. Dist. LEXIS 133181 (N.D. Cal. June 15, 2026). Below, Denuvo submits why each document request is targeted to identifying and serving Defendant voices38 ("Defendant"), complies with the Order, and aligns with *Alo*.

I. EACH REQUEST IS TARGETED TO IDENTIFYING AND SERVING DEFENDANT

Courts permit limited early discovery "to permit the plaintiff to learn the identifying facts necessary to permit service on the defendant." *Columbia Ins. Co. v. seescandy.com*, 185 F.R.D. 573, 577 (N.D. Cal. 1999). The plaintiff must provide "a statement of reasons justifying the specific discovery requested." *Id.* at 580.

A. The Revised Requests Follow the *Alo* Subpoena.

The Order identifies the subpoena in *Alo* as the model for Denuvo's requests. Dkt. No. 24 at 2. In *Alo*, Judge Kang granted leave to serve that subpoena, which sought "[a]ll DOCUMENTS RELATING TO the contact information for the ebay seller kyy_40," including "any identifying information such as . . . names, identification documents, email addresses, business or residential addresses." *Alo*, 2026 U.S. Dist. LEXIS 133181, at *17; *Alo*, ECF No. 16-2 at 16.

Denuvo's revised requests follow the same form. Each seeks all documents relating to the identity or contact information of one account that the Complaint attributes to Defendant, including names, identification documents, email addresses, and business or residential addresses. Exs. A-C. Exhibit A addresses the Discord user "voices38," User ID 1427416652684984397. Compl. ¶ 4. Exhibit B addresses the Reddit user "voices38." *Id.* ¶¶ 3, 64. Exhibit C contains a separate request for each of the seven Steam profiles listed in the Complaint. *Id.* ¶ 5.

The requests do not seek the contents of any message, post, or file, which federal law generally bars these providers from disclosing. 18 U.S.C. § 2702(a)(1). The requests seek records "pertaining to a subscriber," which a provider may disclose "to any person other than a governmental entity." *Id.* § 2702(c)(6). Measured against the *Alo* subpoena, Denuvo's requests differ in only three respects. They reach identity as well as contact information, and they add telephone numbers and Internet Protocol ("IP") addresses. Denuvo respectfully submits that these differences are permissible in light of the Order and *Alo*.

B. Each Difference Is Needed to Identify Defendant and Aligns with *Alo*.

1. Identity Information

In *Alo*, the plaintiff already had a name and a street address from the return label on the packages it bought. *Alo*, 2026 U.S. Dist. LEXIS 133181, at *2-3. In granting leave, Judge Kang described the information sought as an email address and a residential or business address. *Id.* at *15. Denuvo has only a pseudonym. Compl. ¶ 21. Denuvo therefore needs records showing who holds each account, including any name or identification document on file, to name Defendant and effect service. *See* Fed. R. Civ. P. 4(e), (f).

2. Telephone Numbers

Ebates struck telephone numbers because the plaintiff did not explain why it needed them. *Ebates, Inc. v. Does*, No. 16-cv-01925-JST, 2016 U.S. Dist. LEXIS 59480, at *9 (N.D. Cal. May 3, 2016). Denuvo's reason is specific to Discord, which asks each new user to "provide a way of contacting you (such as an email address and/or phone number)." Discord Privacy Policy (eff. Sept. 29, 2025).[1] Discord may also require "a verified phone number." *Id.* A Discord account may therefore carry a telephone number and no email address. That number identifies a carrier and a subscriber of record, which may be the only route to a name and address.

3. IP Addresses

eBay requires every individual seller to provide a full name, an address, a date of birth, and a Social Security number. *Alo*, ECF No. 16-2 at 7. The platforms here require far less, and what they require is self-reported. Valve collects an "email address and country of residence" at registration. Steam Privacy Policy (rev. Feb. 14, 2025).[2] Discord requires a username, a password, a birthday, and a means of contact. Discord Privacy Policy, *supra*. Both platforms log IP addresses. Steam Privacy Policy, *supra* (stating that "our servers log your IP address"); Discord Privacy Policy, *supra* (collecting "information like your IP address"). Those addresses may be the only reliable path to Defendant.

[1] Available at https://discord.com/privacy (last visited Oct. 14, 2026).

[2] Available at https://store.steampowered.com/privacy_agreement/ (last visited Oct. 14, 2026).

Ebates permitted requests for IP address information at registration and during a defined period. *Ebates*, 2016 U.S. Dist. LEXIS 59480, at *8, *10. This Court has likewise authorized a subpoena to any provider "identified in response to a subpoena as a provider of Internet services to Defendant." *Strike 3 Holdings, LLC v. Doe*, No. 21-cv-03950-HSG, ECF No. 8 ¶ 3 (N.D. Cal. June 4, 2021).

C. Denuvo Concurrently Herewith Submits the Proposed Order.

Denuvo concurrently herewith e-files the proposed order and submits a Word version to HSG@cand.uscourts.gov.

II. CONCLUSION

Denuvo's revised requests follow the subpoena the Order identifies as the model, and each difference serves the identification and service of Defendant. Denuvo respectfully requests that the Court grant the *Ex Parte* Motion for Expedited Discovery and authorize service of the subpoenas attached as Exhibits A through C.

Dated: October 14, 2026

HG LAW LLP
Gregory J. Lundell
Donny K. Samporna

and

WORKMAN NYDEGGER
Brian N. Platt *(pro hac vice)*
Ryan C. Morris *(pro hac vice)*

By: */ Donny Samporna /*
Donny K. Samporna
Attorneys for Plaintiff Denuvo GmbH

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURT

for the

Northern District of California

Denuvo GmbH,

Plaintiff

v.

Voices38 and Does 1-10,

Defendant

Civil Action No. 4:26-cv-10423-HSG

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To: Discord, Inc. c/o 1505 Corporation, CT Corporation System
330 N. Brand Blvd., Glendale, CA

(Name of person to whom this subpoena is directed)

☑ *Production:* **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Attachment A

Place:	Date and Time:
HG Law, LLP 111 N. Market St., Ste 900 San Jose, CA 95113	11/03/2026 5:00 pm

☐ *Inspection of Premises:* **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

Signature of Clerk or Deputy Clerk *Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* Denuvo GmbH, who issues or requests this subpoena, are:

HG Law, Donny Samporna, 111 N. Market St., Ste 900, San Jose, CA, donny.samporna@hglaw.com (669)213-1050

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

Civil Action No. 4:26-cv-10423-HSG

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)

I received this subpoena for *(name of individual and title, if any)* _____

on *(date)* _____ .

❒ I served the subpoena by delivering a copy to the named person as follows: _____

_____

_____ on *(date)* _____ ; or

❒ I returned the subpoena unexecuted because: _____

_____ .

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of $ _____ .

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc.:

Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)

(c) Place of Compliance.

(1) ***For a Trial, Hearing, or Deposition.*** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

(A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or

(B) within the state where the person resides, is employed, or regularly transacts business in person, if the person

(i) is a party or a party's officer; or

(ii) is commanded to attend a trial and would not incur substantial expense.

(2) ***For Other Discovery.*** A subpoena may command:

(A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and

(B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) ***Avoiding Undue Burden or Expense; Sanctions.*** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) ***Command to Produce Materials or Permit Inspection.***

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

(i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.

(ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) ***Quashing or Modifying a Subpoena.***

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

(i) fails to allow a reasonable time to comply;

(ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);

(iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or

(iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

(i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

(i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and

(ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) ***Producing Documents or Electronically Stored Information.*** These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) ***Claiming Privilege or Protection.***

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

(i) expressly make the claim; and

(ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) Contempt.

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013).

ATTACHMENT A

DEFINITIONS

1. The instructions and requests below are subject to and incorporate the following definitions and instructions, regardless of whether upper or lower case letters are used:

2. "Document" shall be construed under the broadest possible construction under Federal Rule of Civil Procedure 34 and Federal Rule of Evidence 1001, including all electronically stored information.

3. "Refer to," "referring to," "relate to," "related to," "relating to," "regarding," or "concerning" means in whole or in part constituting, containing, contradicting, embodying, commenting on, depicting, demonstrating, refuting, evidencing, representing, discussing, reflecting, describing, analyzing, identifying, mentioning, stating, summarizing, bearing upon, pertaining to, comprising, involving, alluding to, commenting on, referring directly or indirectly to, dealing with, or in any way pertaining to.

4. The terms "and" and "or" shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.

5. The terms "any," "all," "every," and "each" each means and includes the other.

6. The singular form of any word shall be deemed to include the plural. The plural form of any word shall be deemed to include the singular.

7. The use of a verb in any tense shall be construed as the use of the verb in all other tenses.

8. "Include" and "including" mean including without limitation.

INSTRUCTIONS

1. Produce all responsive Documents, electronically stored information, and Things in Your possession, custody, or control, wherever located, in a manner in which they are maintained.

2. State, for each request, whether or not there exist any Documents within the scope of the request and whether any such Documents are in Your possession, custody, or control.

3. If any Document is withheld from production on the basis of privilege, immunity, or any similar claim, please specify: (i) the date of the Document; (ii) the subject matter of the Document; (iii) the type of Document (memorandum, pamphlet, report, etc.); (iv) such other information as is sufficient to identify the Document, Including, where appropriate, the author, addressee, and any other recipient of the Document, and where not apparent, the relationship of the author, addressee, and any other recipient of each other; and (v) an explanation of the basis for withholding the Document.

4. If You object to the scope or breadth of any request, respond within the scope or breadth of production You contend is proper and define the scope or breadth in which You have responded.

REQUESTS FOR PRODUCTION

1. All documents relating to the identity or contact information for the account user with username “voices38” or User ID 1427416652684984397, including, but not limited to, identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, and business or residential addresses.

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURT

for the

Northern District of California

Denuvo GmbH,

Plaintiff

v.

Voices38 and Does 1-10,

Defendant

Civil Action No. 4:26-cv-10423-HSG

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To: Reddit, Inc. c/o 1505 Corp, Corporation Service Company
2710 Gateway Oaks Dr., Ste 150N, Sacramento, CA 95833

(Name of person to whom this subpoena is directed)

☑ *Production:* **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Attachment A

Place:	Date and Time:
HG Law, LLP 111 N. Market St., Ste 900 San Jose, CA 95113	11/03/2026 5:00 pm

☐ *Inspection of Premises:* **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

Signature of Clerk or Deputy Clerk *Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* Denuvo GmbH, who issues or requests this subpoena, are:

HG Law, Donny Samporna, 111 N. Market St., Ste 900, San Jose, CA, donny.samporna@hglaw.com (669)213-1050

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

Civil Action No. 4:26-cv-10423-HSG

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)

I received this subpoena for *(name of individual and title, if any)* _____

on *(date)* _____ .

❒ I served the subpoena by delivering a copy to the named person as follows: _____

_____

_____ on *(date)* _____ ; or

❒ I returned the subpoena unexecuted because: _____

_____ .

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of $ _____ .

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc.:

Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)

(c) Place of Compliance.

(1) ***For a Trial, Hearing, or Deposition.*** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

(A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or

(B) within the state where the person resides, is employed, or regularly transacts business in person, if the person

(i) is a party or a party's officer; or

(ii) is commanded to attend a trial and would not incur substantial expense.

(2) ***For Other Discovery.*** A subpoena may command:

(A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and

(B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) ***Avoiding Undue Burden or Expense; Sanctions.*** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) ***Command to Produce Materials or Permit Inspection.***

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

(i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.

(ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) ***Quashing or Modifying a Subpoena.***

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

(i) fails to allow a reasonable time to comply;

(ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);

(iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or

(iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

(i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

(i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and

(ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

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(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

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(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) ***Claiming Privilege or Protection.***

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

(i) expressly make the claim; and

(ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) Contempt.

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013).

ATTACHMENT A

DEFINITIONS

1. The instructions and requests below are subject to and incorporate the following definitions and instructions, regardless of whether upper or lower case letters are used:

2. "Document" shall be construed under the broadest possible construction under Federal Rule of Civil Procedure 34 and Federal Rule of Evidence 1001, including all electronically stored information.

3. "Refer to," "referring to," "relate to," "related to," "relating to," "regarding," or "concerning" means in whole or in part constituting, containing, contradicting, embodying, commenting on, depicting, demonstrating, refuting, evidencing, representing, discussing, reflecting, describing, analyzing, identifying, mentioning, stating, summarizing, bearing upon, pertaining to, comprising, involving, alluding to, commenting on, referring directly or indirectly to, dealing with, or in any way pertaining to.

4. The terms "and" and "or" shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.

5. The terms "any," "all," "every," and "each" each means and includes the other.

6. The singular form of any word shall be deemed to include the plural. The plural form of any word shall be deemed to include the singular.

7. The use of a verb in any tense shall be construed as the use of the verb in all other tenses.

8. "Include" and "including" mean including without limitation.

INSTRUCTIONS

1. Produce all responsive Documents, electronically stored information, and Things in Your possession, custody, or control, wherever located, in a manner in which they are maintained.

2. State, for each request, whether or not there exist any Documents within the scope of the request and whether any such Documents are in Your possession, custody, or control.

3. If any Document is withheld from production on the basis of privilege, immunity, or any similar claim, please specify: (i) the date of the Document; (ii) the subject matter of the Document; (iii) the type of Document (memorandum, pamphlet, report, etc.); (iv) such other information as is sufficient to identify the Document, Including, where appropriate, the author, addressee, and any other recipient of the Document, and where not apparent, the relationship of the author, addressee, and any other recipient of each other; and (v) an explanation of the basis for withholding the Document.

4. If You object to the scope or breadth of any request, respond within the scope or breadth of production You contend is proper and define the scope or breadth in which You have responded.

REQUESTS FOR PRODUCTION

1. All Documents relating to the identity or contact information for Reddit user "voices38," including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

AO 88B (Rev. 02/14) Subpoena to Produce Documents, Information, or Objects or to Permit Inspection of Premises in a Civil Action

UNITED STATES DISTRICT COURT

for the

Northern District of California

Denuvo GmbH,

Plaintiff

v.

Voices38 and Does 1-10,

Defendant

Civil Action No. 4:26-cv-10423-HSG

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To: Valve Corporation c/o CT Corporation System
711 Capitol Way S, Ste 204, Olympia, WA 98501-1267

(Name of person to whom this subpoena is directed)

☑ *Production:* **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Attachment A

Place:	Date and Time:
Seattle In-House Counsel Services 4331 NE 42nd St., Seattle, WA 98105	11/03/2026 5:00 pm

☐ *Inspection of Premises:* **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

Signature of Clerk or Deputy Clerk *Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* Denuvo GmbH, who issues or requests this subpoena, are:

HG Law, Donny Samporna, 111 N. Market St., Ste 900, San Jose, CA, donny.samporna@hglaw.com (669)213-1050

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

Civil Action No. 4:26-cv-10423-HSG

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)

I received this subpoena for *(name of individual and title, if any)* _____

on *(date)* _____ .

❒ I served the subpoena by delivering a copy to the named person as follows: _____

_____

_____ on *(date)* _____ ; or

❒ I returned the subpoena unexecuted because: _____

_____ .

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of $ _____ .

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc.:

Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)

(c) Place of Compliance.

(1) ***For a Trial, Hearing, or Deposition.*** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:

(A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or

(B) within the state where the person resides, is employed, or regularly transacts business in person, if the person

(i) is a party or a party's officer; or

(ii) is commanded to attend a trial and would not incur substantial expense.

(2) ***For Other Discovery.*** A subpoena may command:

(A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and

(B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) ***Avoiding Undue Burden or Expense; Sanctions.*** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) ***Command to Produce Materials or Permit Inspection.***

(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.

(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:

(i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.

(ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) ***Quashing or Modifying a Subpoena.***

(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:

(i) fails to allow a reasonable time to comply;

(ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);

(iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or

(iv) subjects a person to undue burden.

(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:

(i) disclosing a trade secret or other confidential research, development, or commercial information; or

(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.

(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:

(i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and

(ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) ***Producing Documents or Electronically Stored Information.*** These procedures apply to producing documents or electronically stored information:

(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.

(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.

(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.

(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) ***Claiming Privilege or Protection.***

(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:

(i) expressly make the claim; and

(ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.

(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) Contempt.

The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013).

ATTACHMENT A

DEFINITIONS

1. The instructions and requests below are subject to and incorporate the following definitions and instructions, regardless of whether upper or lower case letters are used:

2. "Document" shall be construed under the broadest possible construction under Federal Rule of Civil Procedure 34 and Federal Rule of Evidence 1001, including all electronically stored information.

3. "Refer to," "referring to," "relate to," "related to," "relating to," "regarding," or "concerning" means in whole or in part constituting, containing, contradicting, embodying, commenting on, depicting, demonstrating, refuting, evidencing, representing, discussing, reflecting, describing, analyzing, identifying, mentioning, stating, summarizing, bearing upon, pertaining to, comprising, involving, alluding to, commenting on, referring directly or indirectly to, dealing with, or in any way pertaining to.

4. The terms "and" and "or" shall be construed either disjunctively or conjunctively as necessary to bring within the scope of the discovery request all responses that might otherwise be construed to be outside of its scope.

5. The terms "any," "all," "every," and "each" each means and includes the other.

6. The singular form of any word shall be deemed to include the plural. The plural form of any word shall be deemed to include the singular.

7. The use of a verb in any tense shall be construed as the use of the verb in all other tenses.

8. "Include" and "including" mean including without limitation.

INSTRUCTIONS

1. Produce all responsive Documents, electronically stored information, and Things in Your possession, custody, or control, wherever located, in a manner in which they are maintained.

2. State, for each request, whether or not there exist any Documents within the scope of the request and whether any such Documents are in Your possession, custody, or control.

3. If any Document is withheld from production on the basis of privilege, immunity, or any similar claim, please specify: (i) the date of the Document; (ii) the subject matter of the Document; (iii) the type of Document (memorandum, pamphlet, report, etc.); (iv) such other information as is sufficient to identify the Document, Including, where appropriate, the author, addressee, and any other recipient of the Document, and where not apparent, the relationship of the author, addressee, and any other recipient of each other; and (v) an explanation of the basis for withholding the Document.

4. If You object to the scope or breadth of any request, respond within the scope or breadth of production You contend is proper and define the scope or breadth in which You have responded.

REQUESTS FOR PRODUCTION

1. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561199431115733, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

2. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561198779407957, including but not limited to any

identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

3. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561199886659362, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

4. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561199875355070, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

5. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561199872834766, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

6. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561198730942620, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.

7. All Documents relating to the identity or contact information for https://steamcommunity.com/profiles/76561198735927271, including but not limited to any identifying information such as names, identification documents, email addresses, IP addresses, phone numbers, or business or residential addresses.